

STATE OF NEW YORK

453--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. HOYLMAN-SIGAL, CLEARE, COMRIE, JACKSON, KRUEGER, PERSAUD, RIVERA, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to adult immunization reporting requirements

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (b) of subdivision 3 of section 2168 of the
2 public health law, as amended by chapter 420 of the laws of 2014, is
3 amended to read as follows:

4 (b) (i) Any health care provider who administers any vaccine to a
5 person nineteen years of age or older, [~~may~~] **shall** report[~~, with the~~
6 ~~consent of the vaccinee,~~] all such immunizations to the department in a
7 format prescribed by the commissioner within fourteen days of adminis-
8 tration of such immunizations. Health care providers administering
9 immunizations to persons nineteen years of age or older in the city of
10 New York [~~may~~] **shall** report[~~, with the consent of the vaccinee,~~] in a
11 format prescribed by the city of New York commissioner of health and
12 mental hygiene, all such immunizations to the citywide immunization
13 registry.

14 (ii) A registered professional nurse, or a pharmacist who administers
15 a vaccine pursuant to subdivision two of section sixty-eight hundred one
16 of the education law, to a person nineteen years of age or older, shall
17 report[~~, with the consent of the vaccinee,~~] all such immunizations to
18 the department in a format prescribed by the commissioner within four-
19 teen days of administration of such immunizations. Registered profes-
20 sional nurses or pharmacists administering immunizations pursuant to
21 subdivision two of section sixty-eight hundred one of the education law,

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 to persons nineteen years of age or older in the city of New York shall
2 report[, ~~with the consent of the vaccinee,~~] in a format prescribed by
3 the city of New York commissioner of health and mental hygiene, all such
4 immunizations to the citywide immunization registry. Provided, however,
5 no report shall be made under this paragraph if the person to whom the
6 vaccine is administered, or a person authorized to consent to health
7 care for the person, objects to the person who administered the vaccine,
8 prior to the making of the report.
9 § 2. This act shall take effect on the ninetieth day after it shall
10 have become a law.